

STATE OF NEW YORK

7131--B

Cal. No. 238

2025-2026 Regular Sessions

IN SENATE

April 1, 2025

Introduced by Sen. MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Housing, Construction and Community Development in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the executive law and the administrative code of the city of New York, in relation to establishing standards for the design and construction of all-gender bathrooms

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 378 of the executive law is amended by adding a new
2 subdivision 21 to read as follows:

3 21. a. Standards for all-gender bathrooms to provide privacy and secu-
4 rity, incorporating best practices in restroom design, including but not
5 limited to:

6 (i) lockable individual toilet stalls with a minimum door height of
7 eighty-four inches and a maximum undercut of four inches;

8 (ii) no visual gaps at the sides of doors and pilasters;

9 (iii) shared sink areas positioned outside of individual toilet
10 stalls;

11 (iv) allowance for separate sinks within individual stalls; and

12 (v) installation of privacy partitions compliant with the interna-
13 tional association of plumbing and mechanical officials' standards
14 published under the IAPMO/ANSI/CAN Z124.10-2022, or the most recently
15 published version of such publication.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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b. All-gender bathrooms may include urinals provided they are enclosed within individual lockable stalls meeting the privacy standards in paragraph a of this subdivision.

c. (i) The department shall promulgate or amend regulations to allow and facilitate the designation, installation, and use of all-gender bathrooms in any use group as defined in the state building code, including but not limited to commercial, institutional, educational, and public facilities.

(ii) All-gender bathrooms shall be permitted in both new construction and existing structures undergoing repair, renovation, or alteration work.

(iii) Standards developed pursuant to this subdivision shall include requirements for signage and wayfinding standards to ensure clear identification of all-gender bathrooms while maintaining inclusivity and accessibility.

d. For the purposes of this subdivision, "all-gender bathrooms" shall mean multi-fixture toilet rooms with separate, lockable partitions and a shared sink area that can be used by individuals of all gender identities.

§ 2. PC 403 of chapter 4 of the plumbing code of the administrative code of the city of New York is amended by adding a new section 403.6 to read as follows:

§ 403.6 All-gender bathrooms. 1. (a) All-gender bathrooms shall be designed to provide privacy and security, incorporating best practices in restroom design, including but not limited to:

(i) lockable individual toilet stalls with a minimum door height of 84 inches and a maximum undercut of 4 inches;

(ii) no visual gaps at the sides of doors and pilasters;

(iii) shared sink areas positioned outside of individual toilet stalls;

(iv) allowance for separate sinks within individual stalls; and

(v) installation of privacy partitions compliant with the international association of plumbing and mechanical officials' standards published under the IAPMO/ANSI/CAN Z124.10-2022, or the most recently published version of such publication.

(b) All-gender bathrooms may include urinals provided they are enclosed within individual lockable stalls meeting the privacy standards in paragraph (a) of this subdivision.

2. All-gender bathrooms shall be permitted in both new construction and existing structures undergoing repair, renovation, or alteration work.

3. Standards developed pursuant to this section shall include requirements for signage and wayfinding standards to ensure clear identification of all-gender bathrooms while maintaining inclusivity and accessibility.

4. For the purposes of this section, "all-gender bathrooms" shall mean multi-fixture toilet rooms with separate, lockable partitions and a shared sink area that can be used by individuals of all gender identities.

§ 3. This act shall take effect on the ninetieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.